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EXTRAORDINARY

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(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

PROVINCIAL COUNCIL ANNOUNCEMENTS UVA PROVINCIAL COUNCIL

Notice

I, Don Arthur Chamara Sampath Dasanayake, Chief Minister of Uva Province and Minister of Finance and Planning hereby impose directives relating to the Provincial Revenue Department Incentive Allowance fund in accordance with the powers vested under the provisions of statute No.2 of 1992 and statute No.4 of 1993 and Section 77 and Section 104 a of the amendment No.08 of 1990 of the Finance Statute of the Uva Province. These orders shall come into effect from 01.01.2017.

DON ARTHUR CHAMARA SAMPATH DASANAYAKE,
Chief Minister of Uva Province and
Minister of Finance and Planning, Law and Order,
Education, Local Government, Land, Power & Energy,
Construction and Rural Infrastructure Development,
Uva Province.

Office of the Chief Minister,
On 20th September, 2019.



Finance Statute of the Uva Province No. 08 of 1990

Orders

1. This directive is enacted in accordance with the powers vested to the Chief Minister of Uva Province under the chapter 77 and 104 A of the Uva Provincial Finance Statute No.08 of 1990 and its effective from the date of publication in the *Gazette*.
2. Under the provisions stated in the Chapter 104 A of the Uva Provincial Finance Statute No.08 of 1990 Hereinafter referred to as “the Statute”, regulations are enacted to the Administration of Provincial Revenue Department Incentive Allowance Fund and provide for matters connected therewith. These orders will be known as the Provincial Revenue Department Incentive Allowance Fund Orders.
3. An account should be maintained for Provincial Revenue Department Officers Incentive Allowance Fund at a Government Bank.
4. The purpose of the Fund’s existence is for the purposes of paragraph 104 A (3) (A) and (B).
That is,
 - (1) Payment of incentive allowance to Officers in the Provincial Revenue Department.
 - (2) Providing necessary funds for the welfare activities of the officers of the Provincial Revenue Department.
5. The Fund shall be administered by a committee of seven members, Hereinafter referred to as Committee and. The composition of the Committee shall be as follows –
 1. Chief Secretary of Uva Province,
 2. Secretary, Ministry of Finance,
 3. Deputy Chief Secretary (Finance),
 4. Provincial Revenue Commissioner,
 5. Deputy Provincial Revenue Commissioner,
 6. Two Officers of the Provincial Revenue Service named by the Provincial Revenue Commissioner.
6. The fund account should consist of the following sources,
Amounts allocated annually by the Provincial Council for the purpose of incentive allowance work in terms of chapter 104 (2) of the Uva Provincial Finance Statute No. 08 of 1990.
 - (A) In the event that a tax or fee prescribed by any person has not been duly paid in accordance with the provisions of a Charter administered by the Provincial Commissioner of Revenue and the prescribed tax or fee is collected as income, and
Not providing the reports required by such statutes to be submitted under a Statute implemented by the Provincial Commissioner of Revenue and
Turnover as stated in a report, value stated in an instrument of title, on confirmation that the declaration has been false, according to the provisions of the statute an assessment by an assesse and,
25% of the revenue collected from the additional effort of the Officers of the Provincial Revenue Department and
 - (B) 5% of the revenue collected by fines and penalties imposed under certain statute implemented by the Provincial Commissioner of Revenue,
Should be based on a proceeding for the amount of funds to be credited to the account.
7. Payments from the fund shall be made only for the following reasons:
 1. As the purpose of establishing the Fund to provide half yearly incentives to the Officers of the Department of Revenue, and for the arrears of incentives in salary revisions.
 2. For the welfare of the Provincial Revenue Department Officers.

8. (1) The seal of the fund shall be placed in the hands of a member of the Committee, which is determined by the Committee from time to time.
- (3) The seal of the Committee shall not be placed on any document except in the presence of two members of the Committee who shall sign the document unless otherwise approved by the Committee.
- (4) The Committee shall elect two members of the Committee as Chairperson and Secretary of the Committee.
- (5) The Chairman of the Committee shall preside over the meetings and the Chairman shall attend all meetings. All questions to be decided at a meeting of the Committee shall be decided by a majority vote of the members present. When the number of votes is equal, the chairman shall have a critical vote in addition to his vote.
- (6) (I) The role of the Secretary of the Committee is as follows.
 - (A) Summoning meetings on the knowledge of the Chairperson,
 - (B) Writing reports for Committee meetings and keeping them safe,
 - (C) Submitting the Committee with other feasible proposals,
 - (D) Handling Articles on behalf of the Committee,
 - (E) Maintains documents pertaining to the correspondence of the Committee,
- (1) The Committee shall consist of five members.
- (2) The Committee shall regulate the proceedings of the Committee and proceedings relating to its meetings.
- (3) The evaluation of the Officers in the payment of Incentive allowances to the Officers of the Department of Revenue shall be carried out by a three-member Sub-committee headed by the Provincial Commissioner of Revenue as specified in the Incentive Payment Procedure, such Sub-committee shall be appointed with the approval of the Provincial Revenue Department Officers Incentive Allowance Fund Committee. Sub-committee decisions shall be subject to the approval of the Committee.
- (9) The Committee shall perform the following functions:
 - (1) The Committee shall regulate the proceedings of the Committee and proceedings relating to its meetings.
 - (2) Taking action to pay only for matters specified in Section 104A (3) of the statute and the Regulated Fund Procedure.
 - (3) Granting approval for payment of Incentives at the rate agreed by the Committee on the basis of the Sub-committee's determination, in accordance with the procedure for the payment of funds from the Fund.
- (10) (I) The Fund's financial year is a calendar year
- (7) The accounting reports prepared for each calendar year in respect of the Fund's account shall be kept under the audit of the Auditor-General in accordance with Article 154 of the Constitution.
- (11) (I) The Minister may from time to time specify the procedure of the Incentive Fund to regulate the implementation of these Directives, to prescribe the procedure for the formulation of procedures, and to prescribe such matters as may be prescribed.
- (2) The procedure should be published in the *Gazette* by the Minister.

(12) Unless otherwise noted in the context of these terms, these decrees

“Province” means Uva Province.

“Provincial Council” means Provincial Council of Uva Province.

“Minister of Finance” means the Minister in charge of Uva Provincial Finance.

“Chief Secretary” means Chief Secretary of Uva Province.

“Secretary of the Ministry of Finance” means Secretary of the Finance Ministry of Uva Provincial Council.

“Commissioner” means Commissioner of Uva Province Revenue Department.

“Fund” means the Uva Provincial Revenue Department Incentive Allowance Fund.

“Account” means the Uva Provincial Revenue Department Incentive Allowance Fund Account.

“Committee” means the Uva Provincial Revenue Department Incentive Allowance Fund Committee.

“Chairman” means Chairman of the Uva Provincial Revenue Department Incentive Allowance Fund Committee.

(13) If there is any inconsistency between the Sinhala and English texts in these directives, the Sinhala text shall prevail.